NATIONAL DENTAL ASSOCIATION

ndaonline.org 240.241.4448

3060 Mitchellville Road, Suite 215
Bowie, MD 20716

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September 11, 2023

To whom it may concern:

The National Dental Association (NDA) submits this letter in response to the Request for Information Regarding Medical Payment Products issued by HHS, Treasury, and the CFPB. The NDA's mission is to promote oral health equity among people of color by harnessing the collective power of its members, advocating for the needs of and mentoring dental students of color, and raising the profile of the profession in our communities. Among other goals, the NDA seeks to improve the delivery of oral health care in underserved communities.

The RFI describes a variety of concerns that generally relate to two specific issues: (i) access to health care and (ii) whether the health care ecosystem (*e.g.,* providers, hospitals, lenders) properly supports patients in connection with billing for care. We appreciate these concerns and share the desire to expand access to oral health care, especially in underserved communities.
Regarding access to health care, the agencies know that solutions to this issue go well beyond how providers bill and how patients pay for care. NDA supports comprehensive health care reform[1] that provides coverage for all persons and universal access.

Unfortunately, the RFI is not an invitation to discuss the needed reform of the health care system. Instead, it focuses on how consumers pay for care, primarily in hospitals and medical settings. But, the RFI's scope reaches into other aspects of health care, including oral health care. The NDA shares the agencies' concerns around access to care, but the RFI appears to have misdiagnosed the problem. The RFI suggests that patients' access to credit to pay for health care somehow restricts access or choices relating to health care. In fact, the opposite is true. Our members work with patients daily who need oral health care with meaningful out-of-pocket expenses not otherwise covered by insurance. In fact, the RFI references how medical payment products were once used primarily to pay for care not traditionally covered by health insurance plans, such as dental and vision care. That remains the case today, as often, the only way the patient can receive the needed care is through the use of credit. This could be through a credit card (such as a Mastercard, Visa, or CareCredit), installment loan, or other type of credit. Without access to that credit, the patient may need to forego the recommended and desired treatment. Indeed, access to credit is a critical component of oral health equity. Without access to credit, oral health care would be restricted to those who happen to have cash on hand. This would have a significant disparate impact on communities of color.

We do not believe the agencies intend to restrict access to care or reverse progress on health equity, and we urge you to proceed cautiously to avoid such an outcome.

We also note that the RFI suggests mistreatment of patients in connection with billing practices is pervasive in the healthcare community. As it relates to NDA and its members, this is also not the case. NDA and its members are the vanguard of oral health in communities of color. Our goal is to perpetuate the tradition and upgrade the stature of African-American dentists in service to the minority community. The lack of provider compassion cited in the RFI is entirely inconsistent with our profession's ethics, especially the ethics of NDA's members. *In all cases, the NDA supports medical payment products designed to provide access to quality healthcare and improve patient outcomes that are consistent with appropriate billing and collection practices and do not negatively impact and target underserved and vulnerable populations, their home and job security, credit scores, and overall health outcomes.*

The NDA appreciates the opportunity to share its views on the RFI. We urge the agencies to continue to work toward health equity and access to care. This would include ensuring a variety of credit options remain available to patients.

Sincerely,

Dr. Marlon D. Henderson
President, NDA

Dr. Kim B. Perry
Chairman of the Board, NDA